



U.S. DEPARTMENT OF HOMELAND SECURITY **OFFICE OF INSPECTOR GENERAL**

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July 2, 2025

FINAL REPORT

DHS Needs to Improve Oversight of Parole Expiration for Select Humanitarian Parole Processes





OFFICE OF INSPECTOR GENERAL

U.S. Department of Homeland Security

Washington, DC 20528 | www.oig.dhs.gov

July 2, 2025

MEMORANDUM FOR: See Distribution List

FROM: Joseph V. Cuffari, Ph.D.
Inspector General

SUBJECT: *DHS Needs to Improve Oversight of Parole Expiration for Select Humanitarian Parole Processes*

JOSEPH V
CUFFARI

Digitally signed by
JOSEPH V CUFFARI
Date: 2025.07.02
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Attached for your action is our final report, *DHS Needs to Improve Oversight of Parole Expiration for Select Humanitarian Parole Processes*. We incorporated the formal comments provided by your office.

The report contains three recommendations aimed at addressing DHS' oversight of humanitarian parole expiration. Your office concurred with two of the three recommendations. Based on information provided in your response to the draft report, we consider recommendation 1 open and unresolved. As prescribed by Department of Homeland Security Directive 077-01, *Follow-Up and Resolutions for the Office of Inspector General Report Recommendations*, within 90 days of the date of this memorandum, please provide our office with a written response that includes your (1) agreement or disagreement, (2) corrective action plan, and (3) target completion date for each recommendation. Also, please include responsible parties and any other supporting documentation necessary to inform us about the current status of the recommendation. Until your response is received and evaluated, the recommendation will be considered open and unresolved.

Based on information provided in your response to the draft report, we consider recommendations 2 and 3 open and resolved. Once your office has fully implemented the recommendations, please submit a formal closeout letter to us within 30 days so that we may close the recommendations. The memorandum should be accompanied by evidence of completion of agreed-upon corrective actions.

Please send your response or closure request to OIGInspectionsFollowup@oig.dhs.gov.

Consistent with our responsibility under the *Inspector General Act*, we will provide copies of our report to congressional committees with oversight and appropriation responsibility over the Department of Homeland Security. We will post the report on our website for public dissemination.

Please contact me with any questions, or your staff may contact Thomas Kait, Deputy Inspector General, Office of Inspections and Evaluations, at (202) 981-6000.

Attachment

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DHS OIG HIGHLIGHTS

DHS Needs to Improve Oversight of Parole Expiration for Select Humanitarian Parole Processes

July 2, 2025

Why We Did This Review

DHS paroles aliens into the United States for urgent humanitarian reasons or significant public benefit. Parole allows for temporary lawful presence in the United States but does not provide immigration status or a path to lawful permanent residence. We conducted this review to assess whether DHS has processes, procedures, and resources to monitor the end of immigration parole to ensure parolees are lawfully present in the United States and determine what enforcement consequences exist for parolees who stay in the United States after parole expiration or revocation.

What We Recommend

We made three recommendations to improve DHS' oversight of humanitarian parole expiration.

For Further Information:

Contact our Office of Public Affairs at (202) 981-6000, or email us at:

DHS-OIG.OfficePublicAffairs@oig.dhs.gov.

What We Found

Note: We ended our fieldwork for this review in September 2024. In late January 2025, the President issued executive orders and DHS implemented policy changes that significantly impact the humanitarian parole processes under review. This review does not evaluate the effect of those changes as DHS components continue to implement them. Nevertheless, the findings and recommendations are relevant to ensure DHS operates an effective humanitarian parole system.

We found that none of the three Department of Homeland Security components responsible for end of parole activities—U.S. Customs and Border Protection, U.S. Citizenship and Immigration Services, and U.S. Immigration and Customs Enforcement — were designated to monitor parole expiration and DHS did not have a well-defined process to address parole expiration for aliens paroled into the United States through Operation Allies Refuge/Operation Allies Welcome, Uniting for Ukraine, and processes for Cubans, Haitians, Nicaraguans, and Venezuelans. We also found that DHS did not initiate enforcement actions for parolees whose parole expired. As a result, DHS did not have assurance that former parolees were lawfully present in the United States after parole expiration.

Department Response

DHS concurred with two recommendations and did not concur with one. Appendix B contains DHS' management comments in their entirety.



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Abbreviations

ADIS	Arrival and Departure Information System
CBP	U.S. Customs and Border Protection
CHNV	Processes for Cubans, Haitians, Nicaraguans, and Venezuelans
ICE	U.S. Immigration and Customs Enforcement
INA	Immigration and Nationality Act
OAR	Operation Allies Refuge
OAW	Operation Allies Welcome
PLCY	Office of Strategy, Policy, and Plans
POE	Port of Entry
TPS	Temporary Protected Status
U4U	Uniting for Ukraine
USCIS	U.S. Citizenship and Immigration Services



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Background

The *Immigration and Nationality Act* (INA)¹ authorizes the Department of Homeland Security, in its discretion, to temporarily parole aliens into the United States on a case-by-case basis for urgent humanitarian reasons or significant public benefit.² Generally, parole allows eligible aliens temporary lawful presence in the United States but does not provide immigration status or a path to lawful permanent residence.³ In other words, parole permits aliens to be physically present in the United States, but legally their status is the same as if they were outside of the United States, applying for admission.⁴

While in a period of parole, aliens may apply for immigration benefits, such as employment authorization, temporary status, or permanent status to remain in the United States lawfully after parole ends. DHS may also place conditions on parole, such as requirements for medical screenings or change of address reporting.

The DHS Secretary delegated parole authority to three components within the Department: U.S. Customs and Border Protection (CBP); U.S. Citizenship and Immigration Services (USCIS); and U.S. Immigration and Customs Enforcement (ICE).⁵ In addition, the DHS Office of Policy, Strategy, and Plans (PLCY) coordinates with the three components to make policy decisions for the Department's humanitarian parole processes. See Figure 1 for CBP, USCIS, and ICE's primary responsibilities for humanitarian parole processes.

¹ *Immigration and Nationality Act of 1952*, 8 United States Code (U.S.C.) § 1101, et seq.

² The INA at 8 U.S.C. § 1182(d)(5)(A) gives the DHS Secretary discretionary authority to parole into the United States temporarily, under conditions the Secretary may prescribe, on a case-by-case basis for urgent humanitarian reasons or significant public benefit, any alien applying for admission to the United States, regardless of whether the person is inadmissible to, or removable from, the United States. This provision is commonly known as the humanitarian parole authority.

³ Cuban natives or citizens present in the United States after being paroled by an immigration officer after January 1, 1959, may be eligible to apply to become lawful permanent residents (Green Card holders). See *Cuban Adjustment Act of 1966*, Pub. L. No. 89-732.

⁴ The terms "admission" and "admitted" are defined in the INA as "the lawful entry of the alien into the United States after inspection and authorization by an immigration officer." 8 U.S.C. § 1101(a)(13)(A).

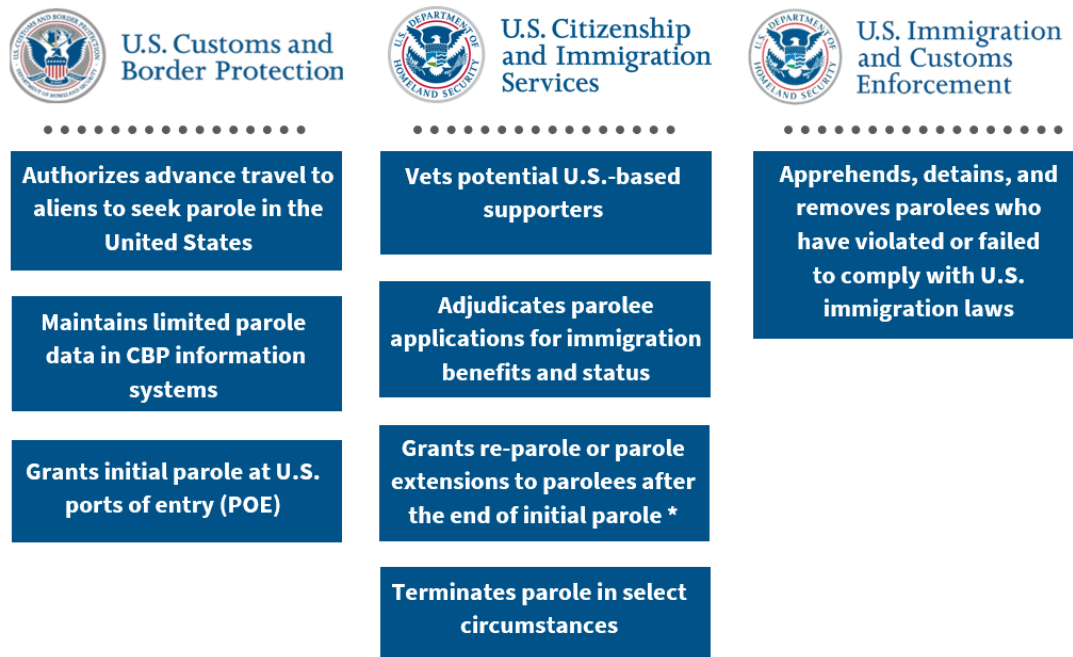
⁵ The Secretary delegated parole authority under three delegations: *DHS Delegation 7010.3, Delegation of Authority to the Commissioner of U.S. Customs and Border Protection*, May 2006; *DHS Delegation 0150.1, Delegation to the Bureau of Citizenship and Immigration Services*, June 2003; and *DHS Delegation 7030.2, Delegation of Authority to the Assistant Secretary for U.S. Immigration and Customs Enforcement*, November 2004.



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Figure 1. Primary CBP, USCIS, and ICE Responsibilities for Select Parole Processes



Source: DHS Office of Inspector General analysis of DHS documents

* USCIS will accept and consider, on a case-by-case basis, re-parole applications from certain OAR/OAW parolees and U4U parolees and their immediate family members already paroled into the United States through these processes. Re-parole is for an additional 2-year period. For OAR/OAW parolees with pending applications for permanent immigration benefits, such as asylum or an adjustment of status, USCIS will automatically consider, on a case-by-case basis, re-parole for an additional 2-year period. These parolees do not need to file an application for re-parole and the additional parole period is considered a parole extension by USCIS. USCIS last issued an extension of an initial period of parole in December 2024.

Since 2021, DHS has granted humanitarian parole to more than 800,000 aliens through select parole processes, including Operation Allies Refuge (OAR)/Operation Allies Welcome (OAW);⁶ Uniting for Ukraine (U4U); and processes for Cubans, Haitians, Nicaraguans, and Venezuelans (CHNV). Under these processes, DHS paroled aliens into the United States from Afghanistan, Ukraine, Cuba, Haiti, Nicaragua, and Venezuela, as well as immediate family members of Ukrainians, Cubans, Haitians, Nicaraguans, and Venezuelans for up to 2-year periods. See Table 1 for an overview of the characteristics of these parole processes.

⁶ The collapse of the Afghan central government and security forces in 2021 led to a U.S. military operation to evacuate vulnerable Afghans from Afghanistan under OAR and resettle them in the United States under OAW, which later transitioned to Enduring Welcome.



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Table 1. Overview of the OAR/OAW, U4U, and CHNV Parole Processes

Parole Process	Parole Process Timeframe	Total Parolees*	Parole Process Logistics	Additional Parole Process Information†
OAR/OAW <i>U.S. Government operations to evacuate vulnerable aliens from Afghanistan (OAR) and resettle them in the United States (OAW) after the 2021 collapse of the Afghan government and security forces</i>	July 2021-September 2022	77,151	CBP screened and vetted evacuees internationally prior to granting parole at U.S. ports of entry (POEs). [§]	Prior to January 2025, USCIS adjudicated OAR/OAW parolee applications under a re-parole process for certain Afghan nationals and a process for case-by-case extension of initial parole. [¶]
U4U <i>Ukrainian refugee crisis resulting from the 2022 Russian military invasion of Ukraine</i>	April 2022-January 2025 (Paused)	233,261	• A potential U.S.-based supporter initiated the process by filing a request with USCIS to become a supporter and agreed to provide financial support to a beneficiary for the duration of the beneficiary's stay in the United States. • CBP authorized advance travel to aliens to seek parole in the United States. • CBP in its discretion, granted parole, at a U.S. POE.	Prior to January 2025, USCIS adjudicated U4U re-parole requests under the re-parole process for certain Ukrainian citizens and their immediate family members. ^{**}
CHNV	October 2022-January 2025 (Venezuelans)	529,096	• A potential U.S.-based supporter initiated the	• No re-parole or parole extension processes.



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Parole Process	Parole Process Timeframe	Total Parolees*	Parole Process Logistics	Additional Parole Process Information†
<i>Increasing number of DHS encounters with Cuban, Haitian, Nicaraguan, and Venezuelan nationals along the Southwest border</i>	January 2023-January 2025 (Cubans, Haitians, and Nicaraguans)		process by filing a request with USCIS to become a supporter and agreed to provide financial support to a beneficiary for the duration of the beneficiary's stay in the United States. • CBP authorized advance travel to aliens to seek parole in the United States. • CBP granted parole, in its discretion, at a U.S. POE.	• The January 2025 Presidential Executive Order directed DHS to terminate the parole processes.

Source: Developed by DHS OIG based on Federal Register notices and other DHS data and information

*The total number of parolees constitutes the number of aliens paroled into the United States under each process from the stated start date through November 22, 2024.

†The January 20, 2025, Presidential Executive Order, *Securing Our Borders*, Exec. Order No. 14165, 90 Fed. Reg. 8467 (Jan. 20, 2025), adjusted humanitarian parole policies and directed the Secretary of DHS to take all appropriate lawful action to terminate certain humanitarian parole programs. As a result, DHS paused USCIS acceptance of applications for the U4U parole process and published a Federal Register notice, Termination of Parole Processes for Cubans, Haitians, Nicaraguans, and Venezuelans, 90 Fed. Reg. 13611 (Mar. 25, 2025), that terminated the CHNV parole process.

§ DHS Office of Inspector General Audit Report, *DHS Encountered Obstacles to Screen, Vet, and Inspect All Evacuees during the Recent Afghanistan Crisis*, OIG-22-64, Sept. 2022, reviewed the extent to which DHS screened, vetted, and inspected evacuees arriving in the United States as part of OAR and OAW.

¶USCIS paused adjudication of re-parole and parole extensions in January 2025. The pause was stayed by court order on May 28, 2025.

**USCIS paused acceptance of new applications and adjudication of re-parole in January 2025. The pause was stayed by court order on May 28, 2025.



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As Table 1 demonstrates, the OAR/OAW, U4U, and CHNV parole processes resulted from unique circumstances and U.S. policy considerations; each process involves different requirements and logistics.

Parole ends for a parolee in one of four ways: expiration, departure from the United States, upon DHS approval of certain applications for permanent status, or termination by DHS. Parole automatically terminates at the end of the parole period (expiration date) or when an alien departs from the United States during the parole period.⁷ In addition, parole ends for a parolee when DHS approves the parolee's application for legal status in the United States where approval is considered an admission, such as lawful permanent resident status.⁸ Finally, DHS may terminate parole under certain circumstances, including where DHS finds:

- the parolee failed to comply with any condition of parole;⁹
- the purpose for parole authorization has been accomplished; or
- neither humanitarian reasons nor public benefit warrant the continued presence of the alien in the United States.¹⁰

Results of Review

Three DHS components — CBP, USCIS, and ICE — are responsible for end of parole activities. These components maintain parole expiration data, terminate parole, and grant re-parole or parole extensions — making it important that they work together to ensure an effective end-to-end parole process. However, during our fieldwork, we found that DHS did not have a well-defined process or designated component to address parole expiration for select parole processes; specifically, OAR /OAW, U4U, and CHNV. In addition, DHS did not initiate enforcement actions for parolees whose parole expired.¹¹ As a result, DHS did not have assurance that former parolees were lawfully present in the United States after parole expiration.

We ended our fieldwork for this review in September 2024, and our findings in this report generally reflect how DHS managed parole expiration prior to January 2025. In late January 2025, the President of the United States issued executive orders and DHS made policy changes in accordance with those executive orders that significantly impact the OAR/OAW, U4U, and CHNV

⁷ Title 8 Code of Federal Regulations (C.F.R.) § 212.5(e)(1).

⁸ A lawful permanent resident is any alien who is living in the United States under legally recognized and lawfully recorded permanent residence as an immigrant. USCIS Glossary, *Lawful Permanent Resident*, available at <https://www.uscis.gov/tools/glossary>.

⁹ USCIS, *Humanitarian or Significant Public Benefit Parole for Aliens Outside the United States, What Is Parole?*, available at https://www.uscis.gov/humanitarian/humanitarian_parole.

¹⁰ 8 C.F.R. § 212.5(e)(2).

¹¹ An enforcement action is a DHS action to prevent unlawful entry into the United States or to apprehend and remove aliens who are present in violation of U.S. immigration laws.



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processes. Specifically:

- The January 20, 2025, Presidential Executive Order, *Securing Our Borders*,¹² directed the DHS Secretary to take all appropriate lawful action to terminate certain humanitarian parole programs including CHNV, and DHS subsequently terminated the CHNV process through a Federal Register notice.
- The January 23, 2025, Acting DHS Secretary's memorandum, *Guidance Regarding How to Exercise Enforcement Discretion*,¹³ directed CBP, USCIS, and ICE officials to review cases of aliens granted humanitarian parole under select processes and determine whether parole remains appropriate in light of any changed legal or factual circumstances.

We have not fully evaluated the effect of the January 2025 changes on humanitarian parole processes as DHS components continue to implement these recent policy changes and litigation over the changes is pending.

DHS Did Not Have a Well-Defined Process to Monitor or Address Parole Expiration for Select Humanitarian Parolees

DHS had processes and procedures to grant initial parole or re-parole, extend parole, or grant other temporary benefits or immigration status to parolees. However, during our fieldwork, we found it did not have a clear process or designated component to monitor or address parole expiration for OAR/OAW, U4U, or CHNV parolees.

The CBP, USCIS, and ICE officials we interviewed uniformly stated that it was not their components' responsibility to monitor or address parole expiration. After our fieldwork CBP shared information on DHS' end of parole monitoring that contradicted information it previously provided; indicating that the process for addressing parole expiration was not well-defined or well-known throughout the three DHS components.

CBP's Role in the Parole Processes

For the OAR/OAW, U4U, and CHNV parole processes, CBP granted parole at POEs and entered parole information into the Arrival and Departure Information System (ADIS), a DHS database that collects and maintains biographic, arrival, and departure information on aliens traveling in and out of the United States. DHS considers ADIS the authoritative system for the Department regarding end of parole data.

¹² Exec. Order No. 14165, 90 Fed. Reg. 8467 (Jan. 20, 2025), available at <https://www.whitehouse.gov/presidential-actions/2025/01/securing-our-borders/>.

¹³ Available at https://www.dhs.gov/sites/default/files/2025-01/25_0123_er-and-parole-guidance.pdf.



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During our fieldwork, CBP officials told us that CBP staff had access to parole expiration information in ADIS but did not have a defined purpose for seeking out parole expiration data. In contrast, CBP is under a congressional mandate to report annually, to Congress and the public, data on overstays — meaning aliens lawfully admitted to the United States at POEs who remain in the United States beyond their authorized period of admission.¹⁴ CBP uses ADIS to generate these overstay reports.¹⁵ When we asked CBP to confirm that parolees were not included in ADIS-generated overstay reports, a CBP official said that although parole populations are in CBP systems, CBP does not do anything with that information. The CBP official also told us that CBP did not generate reports for parole expiration and that Department-level reporting did not exist for end of parole activities, such as parole terminations or the number of parolees who have stayed past their parole expiration. Finally, CBP officials stated that it was beyond their agency's mandate to monitor parole expirations once parolees are in the United States. Officials explained that CBP reviewed parolee information at U.S. POEs to determine whether to grant parole and said that any subsequent responsibilities regarding parole would belong to either USCIS or ICE.

Subsequent to our fieldwork, CBP provided contradictory information. CBP indicated it shares parole expiration information with ICE. In addition, CBP asserted there is Department-level reporting from ADIS for end of parole activities such as parole terminations or the number of parolees who have stayed past their parole expiration. One CBP official noted that previous statements from CBP to the OIG team during our review to the contrary were “an oversight [by CBP] when asked about parolee reporting capabilities.”¹⁶

USCIS' Role in the Parole Processes

For the U4U and CHNV parole processes, USCIS reviewed requests filed by potential supporters, which initiated consideration for parole under these programs. In addition, for OAR/OAW, U4U, and CHNV parolees, USCIS adjudicated applications for immigration benefits and legal pathways to remain in the United States. See Table 2 for the USCIS application statuses of parolees and Appendix C for details of parolee options for legal pathways to remain in the United States.

¹⁴ The CBP *Fiscal Year 2023 Entry/Exit Overstay Report* is available at <https://www.dhs.gov/publication/entryexit-overstay-report>.

¹⁵ *Id.*

¹⁶ We did not evaluate the information CBP provided after our fieldwork due to ongoing DHS process changes resulting from the January 2025 Executive Orders and related DHS policy changes.



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Table 2. USCIS Application Statuses of Parolees*

Category	OAW	U4U	CHNV
Total number of parolees granted initial parole from CBP	77,151	233,261	529,096
Granted re-parole	16,756	73,425	-
Granted a parole extension	49,042	-	-
Pending application for long-term status [†]	28,936	8,809	94,829
Application for long-term status approved	58,909	2,773	11,473
Application for long-term status denied	14	243	152
Pending application for Temporary Protected Status (TPS) [§]	6,410	36,043	107,627
Application for TPS approved	10,107	29,366	87,120
Application for TPS denied	587	484	276

Source: USCIS data as of November 22, 2024

* The data represents the number of applications from the start date of the process through November 22, 2024. Parolees may have multiple applications pending with USCIS at the same time and may be included in more than one category. For example, USCIS may grant a parolee re-parole while the parolee's application for long-term status is pending.

† Long-term status applications include Form I-485, *Application to Register Permanent Residence or Adjust Status*; Form I-589, *Application for Asylum and for Withholding of Removal*; and Form N-400, *Application for Naturalization*.

§ USCIS may grant TPS to eligible nationals already in the United States when they are from certain countries designated for TPS by the DHS Secretary due to conditions in the country that temporarily prevent the country's nationals from returning safely or having their return handled adequately. TPS does not lead to lawful permanent resident status or give any other immigration status. See 8 U.S.C. § 1254a.

As demonstrated in Table 2, parolees had various options to remain in the United States lawfully after the end of their initial parole. Although many parolees have applied for temporary benefits or long-term status, DHS records indicate there are parolees from each parole process who may have remained unlawfully in the United States after parole expiration.¹⁷ See Table 3 for the number of parolees with expired parole and potentially unlawful presence.¹⁸

¹⁷ DHS records do not always definitively indicate whether a parolee is unlawfully present in the United States due to limitations in available data.

¹⁸ Under the INA, the amount of time aliens remain in the United States while not in a period of stay authorized by the Secretary (e.g., after parole expiration) is called unlawful presence. See 8 U.S.C. § 1182(a)(9)(B), *Aliens Unlawfully Present*; USCIS, *Unlawful Presence and Inadmissibility*, available at <https://www.uscis.gov/laws-and-policy/other-resources/unlawful-presence-and-inadmissibility>.



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Table 3. Aliens in the United States Whose Initial Parole Ended

	OAR/OAW	U4U	CHNV
Aliens in the United States Whose Initial Parole Ended*	585	7,255	1,403
- May be unlawfully present in the United States [†]	450	2,424	207
- Pending application with USCIS for asylum, adjustment of status, or TPS [§]	135	4,831	1196

Source: USCIS data as of November 22, 2024

* The table data excludes parolees who have departed the United States according to DHS records.

† Some OAR/OAW parolees with select applications pending with USCIS may have had their parole extended.

§ Under the INA, aliens with pending asylum applications are not unlawfully present in the United States. See INA 212(a)(9)(B)(iii). Further, USCIS considers aliens with pending adjustment applications and pending TPS applications to be in a period of authorized stay. See Adjudicator's Field Manual Ch. 40.9.2(b)(3).

We found that USCIS was not monitoring parole expiration for individual parolees despite information, showing that former parolees may have been unlawfully present in the United States. According to USCIS officials, CBP and ICE should be responsible for tracking the end of parole because CBP granted initial parole and owns the records (in ADIS), and ICE is responsible for immigration enforcement actions concerning aliens who are in the United States on parole. One USCIS official also told us they were not aware of any DHS policies or guidance explaining internal processes at the end of parole.

USCIS reviewed CBP's ADIS for the total number of parolees and their periods of parole. USCIS used ADIS data for an individual parolee only when the parolee applied for re-parole or parole extensions, immigration benefits, or legal status with USCIS.¹⁹ USCIS also maintained data in USCIS information systems on the immigration benefits parolees sought during their period of parole. If a paroled alien did not subsequently apply for benefits or status, no one from USCIS was monitoring that alien's end of parole. A USCIS official said that USCIS does not have a role in the end of parole process because the component only administers immigration benefits. USCIS officials emphasized that when an alien is at the end of their parole period and has not applied for re-parole or any lawful immigration status, ICE is responsible for taking enforcement action because generally USCIS does not take enforcement action for aliens with expired parole.²⁰

¹⁹ USCIS may also use ADIS data for internal policy considerations, but a USCIS senior official said they are not aware of any other way USCIS uses the information.

²⁰ USCIS may initiate an enforcement action by issuing a Notice to Appear that instructs the recipient to appear before an immigration judge; this is the first step in removal proceedings. Under internal guidance in place at the



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ICE's Role in the Parole Processes

At the time of our fieldwork, ICE had a limited role in the parole process.²¹ ICE did not grant parole for OAR/OAW, U4U, or CHNV parolees; did not monitor parole expiration for these parolees; and did not take enforcement action against these parolees solely for parole expiration. USCIS approved potential supporters for the U4U and CHNV process and CBP granted parole at U.S. POEs for the selected populations; however, ICE Enforcement and Removal Operations²² was not notified that these parolees had entered the United States. Therefore, when such paroles expired, ICE did not automatically consider these individuals as potentially removable aliens.

ICE officials stated they would only learn of these parolees and their parole expiration if they were notified that a parolee was encountered by another Federal, state, or local law enforcement agency in connection with alleged criminal activity, or if a parolee was otherwise identified as a threat to public safety or national security. During our fieldwork, ICE officials stated that ICE does not monitor parole expiration and that the component that granted parole bears such responsibility.

DHS' Policy Posture on Monitoring the End of Parole

At the time of our fieldwork, DHS' policy posture for the end of parole was for aliens to either apply for another immigration benefit allowing them to remain in the United States or to depart the United States when their authorized parole period expired. For example, USCIS' website for the CHNV processes²³ previously stated that parolees who had not sought a lawful status or period of authorized stay must leave the United States before the authorized parole period expires, or they may be placed in removal proceedings upon parole expiration. It further stated that if parole expired, parolees would no longer be authorized for employment based on being a parolee, and if they had not been granted a lawful status or period of authorized stay, they may have begun to accrue unlawful presence in the United States.

time of our fieldwork, USCIS could only initiate removal proceedings in the following circumstances: pursuant to regulation; as required by court order or settlement agreement; based on litigation need; and at the written request of the alien applicant if the alien is removable from the United States and has previously filed a benefit request with USCIS.

²¹ ICE's role in the end of parole process is subject to change due to the January 20, 2025, Presidential Executive Order, *Securing Our Borders*, and related DHS policy changes.

²² ICE Enforcement and Removal Operations manages all aspects of the immigration enforcement process, including the identification, arrest, detention, and removal of aliens who are subject to removal or are unlawfully present in the United States.

²³ DHS removed the USCIS website on the CHNV parole processes (<https://www.uscis.gov/CHNV>) prior to the publication of this report.



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Because CBP, USCIS, and ICE all stated that they were not responsible for monitoring what happens when an alien's parole ends, we asked DHS PLCY what processes, procedures, and resources were in place to monitor end of parole. DHS PLCY officials confirmed that DHS expected parolees to voluntarily depart the United States when parole expires. DHS officials also informed us that monitoring parole expiration had little value and tasking a single DHS component or data system with proactively monitoring parole expiration is prohibitively expensive. As a result of DHS relying on parolee self-enforcement and DHS not monitoring parole expiration, aliens may have remained unlawfully in the United States after their parole expired as noted in Table 3 above.

DHS records indicated a parole expiration date between November 2024 and February 2025 for thousands of aliens.²⁴ As parole expires for additional aliens and the January 2025 policy changes are implemented, DHS may face increasing numbers of former parolees remaining unlawfully in the United States due to variations in the legal pathways available to them.

61,455

**Total number of parolees with a parole
expiration date between Nov. 2024 and Feb.
2025**

For example, DHS did not establish a re-parole process for CHNV parole. Instead, parole automatically terminates at the

end of the CHNV parole period (up to 2 years from the day CBP granted parole).²⁵ Parole for Venezuelans, the first CHNV parolees, started to expire in October 2024. Conversely, eligible OAW/OAR parolees could request re-parole under a streamlined process and may have been granted an additional parole period for up to 2 years through USCIS.²⁶ By November 2024, USCIS had granted re-parole or a parole extension to approximately 65,800 OAW parolees out of more than 77,000 OAW paroles, or approximately 85 percent of the OAW parole population. In another example, U4U parolees were eligible to apply for re-parole, but not for parole extensions. CHNV parolees, as mentioned above, will need to apply for other legal pathways to remain lawfully present in the United States. These differences in the options available under the parole

²⁴ Between November 22, 2024, and February 28, 2025, parole was set to expire for 128 OAW parolees, 18,552 U4U parolees, and 42,775 CHNV parolees.

²⁵ Federal Register Notice, 90 Fed. Reg. 13611 (Mar. 25, 2025), set parole for CHNV parolees whose parole had not already expired by April 24, 2025, to terminate on that date absent an individual determination to the contrary by the DHS Secretary. The early termination of CHNV parole pursuant to the notice is currently subject to litigation. On May 30, 2025, the Supreme Court issued an order allowing CHNV parole terminations to proceed under the March 25, 2025 Federal Register notice pending litigation, thus terminating all grants of CHNV parole and work authorization.

²⁶ OAW parolees must meet requirements for re-parole, including entering the United States within a designated class of admission, such as OAR. They will also undergo screening and vetting as part of the approval process.



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processes may affect the number of parolees unlawfully present in the United States after parole expiration.

Parolees are subject to consequences when they remain in the United States after parole expiration. For example, DHS and other Federal partners continuously vet OAR/OAW, U4U, and CHNV parolees during their period of parole. Such vetting may identify derogatory information for further investigation and could ultimately lead to an unfavorable USCIS decision on benefits or parole. However, continuous vetting stops at the conclusion of the parole period, reducing DHS' ability to identify issues for aliens with expired parole.²⁷ In addition, aliens who are unlawfully present may be ineligible for several benefits available to humanitarian parolees such as employment authorization, Temporary Assistance for Needy Families, Supplemental Nutrition Assistance Program benefits, Medicaid, and Department of Health and Human Services Office of Refugee Resettlement benefits.

DHS Did Not Initiate Enforcement Actions for Parolees Due to Parole Expiration

At the time we performed fieldwork, we found that DHS did not take enforcement actions against parolees due to expired parole. Instead, it only took enforcement actions if a parolee committed certain crimes or was identified as a threat to public safety or national security.²⁸ This enforcement posture aligned with priorities in place at that time as outlined in the September 30, 2021, memorandum from the DHS Secretary, *Guidelines for the Enforcement of Civil Immigration Law*, which further defined the characteristics of a threat to public safety or national security.

PLCY and USCIS officials stated they expected parolees to leave the country at the end of their parole period, but as previously noted, DHS records indicate that OAR/OAW, U4U, and CHNV parolees were potentially unlawfully present in the United States as of November 2024. We found that ICE had not initiated enforcement action against these aliens because ICE did not consider parole expiration as an enforcement priority. Recent changes to DHS enforcement priorities, as outlined by January 2025 Presidential Executive Orders and subsequently-issued DHS policies, have terminated or paused categorical parole programs, including OAR/OAW, U4U, and CHNV, and changed enforcement priorities. The new enforcement priorities instructed ICE, CBP, and USCIS to review each parolee's case and consider whether to place them in removal proceedings.

²⁷ DHS will conduct standard security and system checks as part of the application adjudication process in instances when a former parolee submits an application to USCIS.

²⁸ We identified only one instance when DHS terminated an OAW/OAR, U4U, or CHNV parole during our fieldwork. We reviewed that instance of an OAW/OAR parolee arrested by non-DHS Federal law enforcement in October 2024. USCIS terminated the alien's parole approximately 8 days after the arrest and the alien remained in Federal law enforcement custody as of April 2025.



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ICE officials confirmed ICE has no guidance documents or policies specific to the OAR/OAW, U4U, and CHNV parole populations. Aliens with expired parole periods who were not public safety or national security concerns were not a priority for ICE under the September 30, 2021, guidance. ICE officials confirmed this interpretation of the 2021 guidance:

- One ICE official stated any policy specifically targeting the parole population based on how they entered the United States, rather than their lack of status, would be unfair and could lead to litigation.
- Another ICE official said that notification on parolees no longer in status would not benefit ICE because the population is not an enforcement priority and ICE was not involved in granting parole.
- Two ICE officials explained that committing significant resources to amassing a list of aliens with expired parole for ICE would not have value as ICE generally does not take enforcement action unaligned with their enforcement priorities.

Under these DHS policies and practices, aliens could remain unlawfully in the United States after parole expiration without enforcement consequences.

Parole continues to expire for many more parolees, and DHS may experience challenges locating these former parolees, who may no longer adhere to parole requirements such as updating their physical addresses, to take enforcement action now that enforcement priorities have changed.²⁹ In addition, if an alien departs the United States after accruing unlawful presence and later wants to return, prior unlawful presence may make the alien inadmissible for up to 10 years. The absence of enforcement consequences in conjunction with these provisions of the INA may incentivize former parolees to remain in the United States after parole expiration rather than to leave and risk denial of reentry later.

Conclusion

Administration of the OAR/OAW, U4U, and CHNV parolee processes involves coordination between components within DHS. DHS had defined policies, processes, procedures, and roles for certain aspects of the parole processes, such as granting re-parole and adjudicating applications for legal status, but DHS did not have a well-defined process or designate a responsible entity for monitoring and addressing parole expiration. In addition, DHS enforcement priorities under the September 30, 2021, guidance did not prioritize taking enforcement action for parolees remaining in the United States after parole expiration. As a result, DHS did not have assurance that the end of the parole process was operating as intended.

²⁹ We recently reported that DHS has limited ability to track migrants' post-release addresses accurately and effectively, which may hinder ICE's efforts to arrest aliens who pose potential threats to national security, issue notices to appear, and effectuate removals. *DHS Does Not Have Assurance That All Migrants Can be Located Once Released into the United States (REDACTED)*, OIG-23-47, Sept. 2023.



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Aliens may already be unlawfully in the United States after parole expiration without facing enforcement consequences. The number of aliens unlawfully present is likely to increase, as initial parole periods for many more aliens continue to expire and the January 2025 policy changes are implemented, leaving many aliens with no available pathway to remain lawfully in the United States. Addressing vulnerability in the Department's oversight of parole expiration is essential to maintaining the integrity of the immigration system, national security, and public safety.

Recommendations

Recommendation 1: We recommend the DHS Secretary designate a DHS component or office to oversee parole expiration for parolees under the reviewed parole processes who are no longer authorized to remain in the United States, and report on the prevalence of this issue.

Recommendation 2: We recommend the Commissioner of CBP and the Director of USCIS develop and implement a process to identify parolees under the reviewed parole processes who are no longer authorized to remain in the United States.

Recommendation 3: We recommend that the Commissioner of CBP and the Director of USCIS develop and implement a process to ensure ICE receives timely, accurate data regarding parolees under the reviewed parole processes who are no longer authorized to remain in the United States.

Management Comments and OIG Analysis

We included a copy of the complete DHS' Management Response in Appendix B. We also received technical comments on the draft report and revised the report accordingly. DHS did not concur with Recommendation 1, but concurred with Recommendations 2 and 3. We consider Recommendation 1 unresolved and open. Recommendations 2 and 3 are resolved and open. A summary of DHS' responses and our analysis follows.

In response to our report, DHS officials expressed concerns that the report did not include important context that would further clarify the extent to which the findings and conclusions in the report have been overcome by the current administration's policies and priorities. The DHS response described policies by the current administration, including Presidential Proclamation 10866 and multiple Executive Orders, addressing border security. DHS officials also cited the March 25, 2025 Federal Register notice, which terminated parole on April 24, 2025, for Cubans, Haitians, Nicaraguans, and Venezuelans. In addition, DHS officials noted a February 14, 2025, internal memorandum authorized an administrative hold on all USCIS benefit requests from parolees who entered the United States under categorical parole programs, including U4U and CHNV, pending USCIS's additional vetting of applicants.



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We have acknowledged the current administration's relevant policy and priority changes and updated our report, accordingly. As stated in the report, our fieldwork concluded in September 2024 and active litigation surrounding several of the current administration's policy changes to the select processes has resulted in a rapidly changing legal landscape. For these reasons, we acknowledge but do not discuss these changes in greater detail.

DHS Response to Recommendation 1: Non-concur. DHS stated the basis of this recommendation is overcome by execution of the current administration's policies and priorities. It noted that it has already begun carrying out the administration's goals of terminating the parole programs and promptly removing those with no established pathway for durable status. Currently, ICE, CBP, and USCIS all have access to data, including expiration dates, for aliens who were paroled into the United States under one of the reviewed parole processes. Pursuant to the current administration's policies and priorities, ICE, CBP, and USCIS have guidance on how to execute their respective missions and are currently collaborating to accomplish this administration's removal goals concerning aliens granted parole under one of the reviewed parole processes. DHS requested the OIG consider the recommendation resolved and closed.

OIG Analysis: We consider the Department's response partially responsive to this recommendation, which is unresolved and open. We acknowledge that pursuant to the current administration's policies and priorities, ICE, CBP, and USCIS may have increased collaboration and coordination regarding immigration enforcement and the achievement of this administration's removal goals, including with respect to aliens paroled under one of the reviewed programs. The recommendation's intent is for the Department to clearly define component responsibilities for monitoring parole expiration and report on the prevalence of this issue to improve oversight of the Department's various humanitarian parole processes and ensure parolees depart the United States after parole expiration as appropriate. Designating an office or component to identify and report on the prevalence of aliens who reach the end of parole and are no longer authorized to remain in the U.S. is vital to ensuring DHS operates an effective humanitarian parole system. We will close this recommendation when DHS provides documentation supporting well-defined component responsibilities for the end of parole and Department-level reporting on end of parole activities such as termination, expiration, and removals.

DHS Response to Recommendation 2: Concur. DHS noted actions taken to address this recommendation, including component access to databases identifying the date on which parole expires for a specific alien. For example, CBP's ADIS records and tracks all travelers paroled into the United States. DHS also stated the March 25, 2025 Federal Register notice terminating the CHNV parole programs would streamline the process of determining when parole expires for affected aliens. Moreover, DHS will also continue to consider and develop policies and strategies to "terminate all categorical parole programs that are contrary to the policies of the United



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States,” in accordance with EO 14165. DHS requested the OIG consider this recommendation resolved and closed, as implemented.

OIG Analysis: We consider these actions responsive to the recommendation, which is resolved and open. CBP provided a document with information on ADIS overstay leads sent to CBP’s Automated Targeting System in 2024 and 2025. We will close this recommendation when DHS provides documentation of its full process to identify aliens who are no longer authorized to remain in the United States and the related system reports on these aliens.

DHS Response to Recommendation 3: Concur. DHS stated it is dedicated to enforcing immigration laws, including the prompt removal of aliens who have no lawful basis for remaining in the United States. DHS also prioritizes collaboration among ICE, CBP, and USCIS to ensure that former parolees no longer authorized to remain in the United States are identified and addressed according to enforcement priorities. If an alien overstays their period of parole, without obtaining or applying for another lawful basis to remain in the United States, ADIS will identify that alien as an in-country overstay. ADIS then shares the alien’s overstay information with CBP’s Automated Targeting System, which will process this information and provide daily parole overstay information with ICE’s Counter Threat Lead Development Unit via ICE data systems. DHS requested the OIG consider this recommendation resolved and closed, as implemented.

OIG Analysis: We consider these actions responsive to the recommendation, which is resolved and open. DHS provided information to us on this process subsequent to our fieldwork, but has not yet provided supporting documents to demonstrate all elements of the process in action. We will close this recommendation when DHS provides documentation of its process to provide ICE with data on aliens who are no longer authorized to remain in the United States as described in its response and the related reports sent to ICE.



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Appendix A: Objective, Scope, and Methodology

The Department of Homeland Security Office of Inspector General was established by the *Homeland Security Act of 2002* (Pub. L. No. 107–296) by amendment to the *Inspector General Act of 1978*.

Our objective in conducting this review was to assess whether DHS has processes, procedures, and resources to monitor the end of immigration parole to ensure parolees are lawfully present in the United States and determine what enforcement consequences exist for parolees who stay in the United States after parole expiration or revocation. We limited our scope to aliens paroled into the United States through the OAR/OAW, U4U, and CHNV parole processes. We did not evaluate the effect of the current administration’s 2025 enforcement policy changes on humanitarian parole processes as these changes were implemented after the completion of our fieldwork.

To answer our objective, we interviewed officials and staff from different DHS components, including CBP, USCIS, ICE, and PLCY. We reviewed documents, including relevant policies, procedures, guidance, and other documents related to monitoring the end of humanitarian parole for parolees. We also analyzed DHS data related to humanitarian parole for OAR/OAW, U4U, and CHNV parolees including information on the number of parolees under each process, parole expirations, re-parole, parole extensions, and parole terminations.

We conducted this review from March 2024 to September 2024 under the authority of the *Inspector General Act of 1978*, 5 U.S.C. §§ 401–424, and according to the *Quality Standards for Inspection and Evaluation*, issued by the Council of the Inspectors General on Integrity and Efficiency.

DHS OIG’s Access to DHS Information

During this review, DHS components provided timely responses to DHS OIG’s requests for information and did not delay or deny access to information we requested.



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Appendix B: DHS Comments on the Draft Report

U.S. Department of Homeland Security
Washington, DC 20528



**Homeland
Security**

BY ELECTRONIC SUBMISSION

May 9, 2025

MEMORANDUM FOR: Joseph V. Cuffari, Ph.D.
Inspector General

FROM: Jim H. Crumpacker JIM H
Director CRUMPACKER
Departmental GAO-OIG Liaison Office

SUBJECT: Management Response to Draft Report: "DHS should
Improve Oversight of Humanitarian Parole Expiration"
(OIG Project No. 24-013-ISP-DHS)

Digitally signed by JIM H
CRUMPACKER
Date: 2025.05.09 16:30:07 -04'00'

Thank you for the opportunity to comment on this draft report. The U.S. Department of Homeland Security (DHS, or the Department) appreciates the work of the Office of Inspector General (OIG) in planning and conducting its review and issuing this report.

DHS leadership is pleased to note OIG's recognition that the findings in this report generally reflect how DHS managed parole expiration prior to January 2025.¹ It is important for readers of the report to know that significant policy changes have occurred since the report was completed. OIG also acknowledged that the President of the United States issued executive orders (EOs) in late January 2025 and the Secretary of Homeland Security also issued memoranda in accordance with those EOs that significantly impact the humanitarian parole processes (hereinafter "categorical parole programs") reviewed as part of this OIG evaluation.

DHS is concerned, however, that OIG's draft report is missing important context which would further clarify for readers the extent to which the findings and conclusions in this report have been overcome by the policies and priorities of the current administration. Specifically, readers should be aware that the previous administration's use of parole was exceptional and unprecedented in its breadth, and resulted in well over one million aliens being paroled into the United States, many of whom do not have an established pathway for durable status.² Moreover, as the report noted, DHS did not take enforcement actions against aliens due to parole expiration. This resulted in aliens whose parole expired

¹ OIG concluded its fieldwork for this evaluation in September 2024.

² Lawful basis to remain in the United States that is not temporary in nature (e.g., adjustment of status, asylum, etc.).



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having little motivation to depart the United States even though they may not have had a clear path to durable status.

Unlike the previous administration, the current administration intends to take enforcement action where appropriate against aliens whose parole has expired to address the insecurity caused by categorical parole programs and has taken steps to this end. For example, upon taking office on January 20, 2025, President Donald J. Trump took immediate action to secure the nation's borders and protect the American public from the dangers of illegal immigration through such policies as:

- Presidential Proclamation 10886, "Declaring a National Emergency at the Southern Border of the United States;"³
- EO 14159, "Protecting the American People Against Invasion;"⁴
- EO 14161, "Protecting the United States from Foreign Terrorists and Other National Security and Public Safety Threats;"⁵
- EO 14163, "Realigning the United States Refugee Admissions Program;"⁶
- EO 14165, "Securing our Borders;"⁷ and
- EO 14167, "Clarifying the Military's Role in Protecting the Territorial Integrity of the United States."⁸

EO 14165 contains two specific clauses that are particularly relevant for readers of OIG's report to understand that the Department is fully compliant with the current administration's policies and priorities:

Sec. 2. Policy. It is the policy of the United States to take all appropriate action to secure the borders of our Nation through the following means . . .
(d) Removing promptly all aliens who enter or remain in violation of Federal law; ...

³ Proclamation 10886, "Declaring a National Emergency at the Southern Border of the United States," signed January 20, 2025; 90 Fed. Reg. 8327 (Jan. 29, 2025), available at <https://www.federalregister.gov/d/2025-01948>.

⁴ EO 14159, "Protecting the American People Against Invasion," signed January 20, 2025; 90 Fed. Reg. 8443 (Jan. 29, 2025), available at <https://www.federalregister.gov/documents/2025/01/29/2025-02006/protecting-the-american-people-against-invasion>.

⁵ EO 14161, "Protecting the United States from Foreign Terrorists and Other National Security and Public Safety Threats," signed January 20, 2025; 90 Fed. Reg. 8451 (Jan. 30, 2025), available at <https://www.federalregister.gov/documents/2025/01/30/2025-02009/protecting-the-united-states-from-foreign-terrorists-and-other-national-security-and-public-safety>.

⁶ EO 14163, "Realigning the United States Refugee Admissions Program," signed January 20, 2025; 90 Fed. Reg. 8459 (Jan. 30, 2025), available at <https://www.federalregister.gov/documents/2025/01/30/2025-02011/realigning-the-united-states-refugee-admissions-program>.

⁷ EO 14165, "Securing our Borders," signed January 30, 2025; 90 Fed. Reg. 8467 (Jan. 30, 2025), available at <https://www.federalregister.gov/documents/2025/01/30/2025-02015/securing-our-borders>.

⁸ EO 14167, "Clarifying the Military's Role in Protecting the Territorial Integrity of the United States," signed January 20, 2025; 90 Fed. Reg. 8613 (Jan. 30, 2025), available at <https://www.federalregister.gov/documents/2025/01/30/2025-02089/clarifying-the-militarys-role-in-protecting-the-territorial-integrity-of-the-united-states>.



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Sec. 7. Adjusting Parole Policies. The Secretary of Homeland Security shall, consistent with applicable law, take all appropriate action to . . .

(b) Terminate all categorical parole programs that are contrary to the policies of the United States established in my Executive Orders, including the program known as the “Processes for Cubans, Haitians, Nicaraguans, and Venezuelans.”

Pursuant to EO 14165 and all other Presidential directives regarding the border, immigration, and national security, DHS:

- Ensured that aliens comply with their duty to register with the government under section 262 of the Immigration and Nationality Act (INA) (8 U.S.C. 1302) by issuing an interim final rule on March 12, 2025,⁹ designating a mechanism for aliens, regardless of their status, to register. Specifically, the U.S. Citizenship and Immigration Services (USCIS) implemented a new form, G-325R, “Biographic Information (Registration),” which was approved on March 5, 2025, and an online process for all unregistered aliens to register and comply with the law effective April 11, 2025. Anyone who does not comply with the registration requirement will be treated as a civil and criminal enforcement priority. USCIS’s Alien Registration Requirement webpage¹⁰ offers information for aliens, including how to register and what to expect after registration.
- Published a Federal Register Notice (FRN) to terminate the parole programs for Cubans, Haitians, Nicaraguans, and Venezuelans (CHNV parole programs) as of March 25, 2025.¹¹ Specifically, the FRN explains that:
 - The CHNV parole programs are terminated as of March 25, 2025; there are no approved advance travel authorizations issued under these programs; and DHS will cancel all pending applications for such advance travel authorizations under these programs;
 - USCIS will notify all supporters with pending or previously confirmed requests to participate in the CHNV parole program that their requests are non-confirmed following the termination of the program.

⁹ Alien Registration Form and Evidence of Registration, 90 Fed. Reg. 11793 (Mar. 12, 2025), available at <https://www.federalregister.gov/documents/2025/03/12/2025-03944/alien-registration-form-and-evidence-of-registration>.

¹⁰ See <https://www.uscis.gov/alienregistration>.

¹¹ Termination of Parole Processes for Cubans, Haitians, Nicaraguans, and Venezuelans, 90 Fed. Reg. 13611 (Mar. 25, 2025), available at <https://www.federalregister.gov/documents/2025/03/25/2025-05128/termination-of-parole-processes-for-cubans-haitians-nicaraguans-and-venezuelans>. On April 14, 2025, the United States District Court for the District of Massachusetts issued a Preliminary Injunction Order staying parts of the March 25, 2025 FRN. See *Svitlana Doe, et al., v. Noem, et al.*, No. 25-cv-10495 (D. Mass. Apr. 14, 2025). Pursuant to the order, the FRN’s termination of existing CHNV paroles and related employment authorization, and the parole termination notices that were sent to aliens from Cuba, Haiti, Nicaragua, and Venezuela pursuant to the FRN, are stayed and therefore not currently in effect. No new requests for CHNV parole will be processed. The First Circuit Court of Appeals affirmed the Preliminary Injunction Order on May 5, 2025.



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- For aliens whose parole had not already terminated by April 24, 2025, parole will be terminated on April 24, 2025, unless the Secretary of Homeland Security makes an individual determination to the contrary.
- Aliens without a lawful basis to remain in the United States following this termination of CHNV parole programs must depart the United States before their parole termination date.
- DHS will prioritize former CHNV parolees for enforcement actions who:
 - (1) have not, prior to the publication of the notice, properly filed an immigration benefit request, with appropriate fee, or fee waiver request, to obtain a lawful basis to remain in the United States; or (2) are not the beneficiary of an immigration benefit request properly filed by someone else on their behalf. However, aliens who have since obtained a lawful immigration status or other basis that permits them to remain in the United States are not required to depart the United States pursuant to this notice.
- Increased arrests and removals. Since January 20, 2025, U.S. Immigration and Customs Enforcement (ICE) made more than 44,000 arrests, while DHS repatriated more than 93,000 illegal aliens.
- Launched a multimillion-dollar ad campaign encouraging illegal aliens to “Stay Out and Leave Now.” This campaign includes the U.S. Customs and Border Protection (CBP) Home app, which has a self-deportation reporting feature for aliens illegally within the United States. Using this CBP Home mobile phone application, aliens may share the details of their plans to depart.
- Issued an adjudicative hold on February 14, 2025, via an internal memorandum,¹² pertaining to all pending benefit requests filed by parolees who entered the United States under one of the categorical parole programs, including Uniting for Ukraine, CHNV, and Family Reunification Parole. In this hold memorandum, USCIS freezes any pending benefit request filed by this population and gives USCIS time to conduct additional screening and vetting.
- Began a comprehensive review, pursuant to a January 20, 2025 internal memorandum, to consider whether certain categorical parole programs should be paused, modified, or phased out.

The draft report contained three recommendations, including one with which DHS non-concurs (Recommendation 1) and two with which the Department concurs (Recommendation 2 and 3). Attached find our detailed response to each recommendation. DHS previously submitted technical comments addressing several accuracy, contextual, and other issues under a separate cover for OIG’s consideration, as appropriate.

¹² “Administrative Hold on All USCIS Benefit Requests filed by Parolees Under the Uniting for Ukraine (U4U) Process, Processes for Haitians, Cubans, Nicaraguans, and Venezuelans (CHNV) Process or Family Reunification Parole (FRP) Process,” dated February 14, 2025.



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Again, thank you for the opportunity to review and comment on this draft report. Please feel free to contact me if you have any questions.

Attachment



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Attachment: Management Response to Recommendations Contained in OIG 24-013-ISP-DHS

OIG recommended that Secretary of Homeland Security:

Recommendation 1: Designate a DHS component or office to oversee parole expiration for parolees under the reviewed “parole processes” who are no longer authorized to remain in the United States, and report on the prevalence of this issue.

Response: Non-concur. The Department has already begun carrying out the administration’s goals of terminating categorical parole programs and promptly removing those with no established pathway for durable status. Enforcement of immigration law is executed across Components, with each Component responsible for a defined mission set. Currently, ICE, CBP, and USCIS all have access to data, including expiration dates, for aliens who were paroled into the United States under one of the categorical programs. Pursuant to the current administration’s policies and priorities, ICE, CBP, and USCIS renewed collaboration and coordination with regard to immigration enforcement. Specifically, Components have well-established guidance on how to execute their respective missions and are currently collaborating to accomplish this administration’s removal goals concerning aliens granted parole under one of the categorical programs.

On March 25, 2025, DHS published an FRN that terminated the Cuban, Haitian, Nicaraguan, and Venezuelan (CHNV) parole programs. DHS continues to review other parole programs. Given these efforts, the basis of this recommendation is overcome by execution of the current administration’s policies and priorities.

We request that OIG consider this recommendation resolved and closed.

OIG recommended that the Commissioner of CBP and the Director of USCIS:

Recommendation 2: Develop and implement a process to identify parolees under the reviewed “parole processes” who are no longer authorized to remain in the United States.

Response: Concur. DHS already took effective action to identify parolees who are no longer authorized to remain in the United States, pursuant to EOs and a Presidential Proclamation setting forth the current administration’s expectations for addressing enforcement action against aliens whose parole has expired. Accordingly, CBP, ICE, and USCIS already have access to databases identifying the date on which parole expires for a specific alien. For example, CBP’s Arrival and Departure Information System (ADIS) records and tracks all travelers admitted or paroled into the U.S. This includes travelers who are paroled as part of categorical parole programs, such as the CHNV parole



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programs.

The March 25, 2025 FRN terminating the CHNV parole programs would streamline the process of determining when parole expires for affected aliens. Under the notice, aliens paroled into the United States under the CHNV parole programs and whose parole has not already expired by April 24, 2025, would have had their parole terminated on that date unless the Secretary of Homeland Security makes an individual determination to the contrary. DHS will also continue to consider and develop policies and strategies to “terminate all categorical parole programs that are contrary to the policies of the United States,” in accordance with EO 14165. Given that DHS already can determine whether an alien’s parole has expired and will consider enforcement action in those circumstances, we request the OIG consider this recommendation resolved and closed, as implemented.

Recommendation 3: Develop and implement a process to ensure ICE receives timely, accurate data regarding parolees under the reviewed “parole processes” who are no longer authorized to remain in the United States.

Response: Concur. DHS is dedicated to enforcing our immigration laws, to include the prompt removal of aliens who have no lawful basis for remaining in the United States. DHS also prioritizes collaboration among ICE, CBP, and USCIS to ensure that former parolees no longer authorized to remain in the United States are identified and addressed according to enforcement priorities. For example, the FRN terminating the CHNV parole programs demonstrates how DHS would implement direction from the current administration. As explained in the notice, following termination of parole for aliens paroled under the CHNV parole program, DHS would prioritize for enforcement action former CHNV parolees who: (1) have not, prior to March 25, 2025, properly filed an immigration benefit request, with appropriate fee, (or fee waiver request, if available) to obtain a lawful basis to remain in the United States or (2) are not the beneficiary of an immigration benefit request properly filed by someone else on their behalf.

Moreover, if an alien overstays their period of parole, without obtaining or applying for another lawful basis to remain in the United States, ADIS will identify that alien as an in-country overstay, if in-country. ADIS then shares the alien’s overstay information with CBP Automated Targeting System, which will process this information and provide daily parole overstay information to ICE through the LeadTrac Modernization (LTM) for review by the Counter Threat Lead Development Unit (CTLTD). ADIS and ICE LTM also share information on overstay leads that are updated or are later closed. Given that ICE can already access timely and accurate data regarding former parolees who are no longer authorized to remain in the United States, we request the OIG consider this recommendation resolved and closed, as implemented.



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Appendix C:

Legal Pathways to Remain in the United States After the End of Initial Parole

Re-Parole	❖ For Afghans, USCIS will consider a parolee for re-parole (an additional 2-year period of parole) on a case-by-case basis if an Afghan national was paroled with an OAR or PAR class of admission. ❖ For Ukrainians, effective Feb. 27, 2024, USCIS will accept and consider, on a case-by-case basis, applications for re-parole of certain Ukrainians and their immediate family members paroled into the United States under section 212(d)(5)(A) of the INA. ❖ For CHNV, no re-parole.
Parole Extension	❖ For Afghans, USCIS will automatically consider parole extension (an additional period of parole) on a case-by-case basis if an Afghan national: ○ was age 14 years or older on Sept. 26, 2023; ○ was paroled into the United States with an OAR or PAR class of admission; ○ had a pending Form I-589, Application for Asylum and for Withholding of Removal, or Form I-485, Application to Register Permanent Residence or Adjust Status; and ○ filed Form I-589 or Form I-485 before your initial parole expired. ❖ For U4U and CHNV, no parole extension.
TPS	❖ Aliens paroled into the United States can apply for TPS, as well as any other immigration status for which they may be eligible. ❖ Afghanistan – terminated on May 13, 2025: ○ continuous residence in United States since September 20, 2023; and ○ continuous physical presence in United States since November 21, 2023. ○ TPS designation through July 14, 2025.



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	❖ Ukraine: ○ continuous residence in United States since August 16, 2023; and ○ continuous presence in United States since October 20, 2023. ○ TPS designation through October 19, 2026. ❖ Haiti: ○ 2024 designation – partially vacated on February 24, 2024; ▪ continuous residence in United States since June 3, 2024; and ▪ continuous presence in United States since August 4, 2024. ▪ TPS designation through August 3, 2025. ❖ Nicaragua: ○ continuous residence in United States since December 30, 1998; and ○ continuous presence in United States since January 5, 1999. ○ TPS designation through July 5, 2025. ❖ Venezuela: ○ 2023 designation – terminated on February 5, 2025: ▪ continuous residence in United States since July 31, 2023; and ▪ continuous presence in United States since October 3, 2023. ▪ TPS designation through April 7, 2025.
Asylum	❖ Asylum may be granted to people who have been persecuted or fear they will be persecuted on account of race, religion, nationality, political opinion, or membership in a particular social group.
Cuban Adjustment Act	❖ Cuban natives or citizens present in the United States after being inspected and admitted or paroled by an immigration officer after January 1, 1959, may be



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	eligible to apply to become lawful permanent residents (Green Card holders).
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Note: Parolees must meet eligibility requirements, and this list is not exhaustive of all possible legal pathways.

Source: USCIS information



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